

22STCV29094 22STCV29094

County: los-angeles

Division: Civil Law and Motion

Department: 617

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Case Number: 22STCV29094 Hearing Date: July 10, 2026 Dept: 617

Dept.

617

Date:

7-10-26

Case

#: 22STCV29094

Trial

Date: 1-19-27

SUMMARY JUDGMENT/SUMMARY ADJUDICATION

MOVING

PARTY: Defendant, Certain Underwriters at Lloyd's of London Subscribing to
Policy Number AG19000031-00

RESPONDING

PARTY: Plaintiffs, Salar Benschian, Albert Benschian, and Elham Zarabi

RELIEF

REQUESTED

Motion

for Summary Judgment, or in the Alternative, Summary Adjudication

SUMMARY

OF ACTION

Upon

returning home from vacation, Plaintiffs Salar Benshian, Albert Benshian, and Elham Zarabi discovered their home had been damaged and burglarized. They immediately reported the crime to police and identified missing jewelry, silverware, and other property totaling \$553,700. Plaintiffs timely submitted claims to Defendants Metlife Auto & Home Insurance Agency Inc. and Certain Underwriters at Lloyd's of London Subscribing to Policy Number AG19000031-00 (Lloyd's) under their property insurance policies. Metlife denied Plaintiffs' claim due to a failure to "fully cooperate" with its investigation and Lloyd's never responded. Plaintiffs allege that Metlife's decision was based on their ethnicity given the emphasis it purportedly placed on their country of origin in their examination. Plaintiffs also claim that Lloyd's has a policy of making claims "virtually impossible" by failing to identify the manner of filing a claim in California.

On

June 15, 2023, Plaintiffs filed a First Amended Complaint against Metlife, Orchid Underwriters Agency, LLC, and Lloyd's for breach of contract, breach of the implied covenant of good faith and fair dealing, unfair business practices, negligent infliction of emotional distress, and bad faith denial of insurance coverage. Plaintiffs also assert claims against Metlife for violations of Civil Code section 51 and the Business and Professions Code. Defendant Parviz Aminpour was substituted for Doe 2 on January 10, 2024.

RULING: Continued.

Defendant Lloyd's moves for

summary judgment, or in the alternative, summary adjudication as to each cause of action in Plaintiffs' First Amended Complaint. It argues that Plaintiffs' claims have no merit and fail as a matter of law. Plaintiffs oppose the motion, maintaining the existence of triable issues of material facts. As an initial matter, Defendant does not have standing to challenge the sixth and seventh causes of action for violations of Civil Code section 51 and the Business and Professions Code section 17200 because those claims are asserted only against Metlife. (See *Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 410 ["Allegations of misconduct directed against one defendant, however, do not state a cause of action against another defendant against whom the allegations of misconduct are not directed"].) Thus, only the

first through fifth causes of action are at issue. Defendant's motion is continued to permit Plaintiffs' counsel to correct his declaration and/or submit a supplemental declaration authenticating the exhibits in Plaintiffs' submitted appendix of exhibits.

The Court finds a continuance is warranted based on the papers and evidence submitted. As submitted, most of Plaintiffs' exhibits are not authenticated. This includes the letter reporting Plaintiffs' insurance claim, as well as the corresponding photos, that counsel purportedly sent to Mendes & Mount, LLP, the law firm designated to accept service of suit on behalf of Defendant regarding the insurance policy. [See Abrams Decl. ¶ 6.] Defendant's motion largely rests on the absence of a submitted insurance claim, and it does not deny that claims may be submitted to Mendes & Mount. [Mot. at pp. 11-14.] Thus, with a simple correction to counsel's declaration (e.g., stating that the letter and photos attached were the ones sent to Mendes & Mount on the date identified), Plaintiffs may be able to raise a triable issue of material fact on this key point. (See Evid. Code, § 1400 [writing may be authenticated through "introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is"].) The "proper response" to technical defects of this sort is to "grant an opportunity to cure so the motion can be resolved on the merits." (Walton v. Victor Valley Community College Dist. (2026) 119 Cal.App.5th 1164, 1170-71 [abuse of discretion to sustain objection to declaration for want of subscription without permitting counsel to cure].) The instant motion is therefore continued to a date and time to be determined at the hearing to allow Plaintiffs' counsel the opportunity to amend his declaration and/or submit a supplemental declaration authenticating the exhibits.

Defendant to give notice.